

Decree

LOUISIANA *v.* MISSISSIPPI ET AL.

ON BILL OF COMPLAINT

No. 121, Orig. Decided October 31, 1995—Decree entered
December 4, 1995

Decree entered.

Opinion reported: *Ante*, p. 22.

DECREE

This cause having come on to be heard on the Report of the Special Master heretofore appointed by the Court, and the exceptions filed thereto, and having been argued by counsel for the several parties, and this Court having stated its conclusions in its opinion announced on October 31, 1995, *ante*, p. 22, and having considered the positions of the respective parties as to the terms of the decree, IT IS HEREBY ORDERED, ADJUDGED, AND DECREED AS FOLLOWS:

1. The boundary between the State of Louisiana and the State of Mississippi along the Mississippi River between North Latitude 32° 49' 25" and North Latitude 32° 44' lies along the line described as follows:

Beginning at Pt. 1 at North Latitude 32° 49' 25" and West Longitude 91° 09' 27"; thence to Pt. 2, Latitude 32° 49' and Longitude 91° 09' 34"; thence to Pt. 3, Latitude 32° 49' 47" and Longitude 91° 09' 37"; thence to Pt. 4, Latitude 32° 48' 30" and Longitude 91° 09' 39"; thence to Pt. 5, Latitude 32° 48' and Longitude 91° 09' 47"; thence to Pt. 6, Latitude 32° 47' 18" and Longitude 91° 09' 51"; thence to Pt. 7, Latitude 32° 47' 6" and Longitude 91° 09' 54"; thence to Pt. 8, Latitude 32° 47' and Longitude 91° 09' 59"; thence to Pt. 9, Latitude 32° 46' 50" and Longitude 91° 10' 7"; thence to Pt. 10, Latitude 32° 46' 35" and Longitude 91° 10' 14"; thence to Pt. 11, Latitude 32° 46' 20" and Longitude 91° 10' 16"; thence

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to Pt. 12, Latitude $32^{\circ} 46'$ and Longitude $91^{\circ} 10' 18''$; thence to Pt. 13, Latitude $32^{\circ} 45' 45''$ and Longitude $91^{\circ} 10' 20''$; thence to Pt. 14, Latitude $32^{\circ} 45' 30''$ and Longitude $91^{\circ} 10' 18''$; thence to Pt. 15, Latitude $32^{\circ} 45' 15''$ and Longitude $91^{\circ} 10' 12''$; thence to Pt. 16, Latitude $32^{\circ} 45'$ and Longitude $91^{\circ} 10' 01''$; thence to Pt. 17, Latitude $32^{\circ} 44' 45''$ and Longitude $91^{\circ} 09' 49''$; thence to Pt. 18, Latitude $32^{\circ} 44' 30''$ and Longitude $91^{\circ} 09' 38''$; thence to Pt. 19, Latitude $32^{\circ} 44' 23''$ and Longitude $91^{\circ} 09' 30''$; thence to Pt. 20, Latitude $32^{\circ} 44' 15''$ and Longitude $91^{\circ} 09' 18''$; thence to Pt. 21, Latitude $32^{\circ} 44' 07''$ and Longitude $91^{\circ} 09'$; thence to Pt. 22, Latitude $32^{\circ} 44'$ and Longitude $91^{\circ} 08' 44''$.

2. The State of Louisiana's prayer that the claim of title by defendants Julia Donelson Houston, et al., in and to the lands and water bottoms lying between the Mississippi River on the east and the Louisiana-Mississippi boundary line as fixed in the preceding paragraph on the west be canceled and forever held for naught is DENIED.

3. The Court retains jurisdiction to entertain such further proceedings, enter such orders and issue such writs as may from time to time be deemed necessary or advisable to give proper force and effect to this decree or to effectuate the rights of the parties in the premises.

Syllabus

THINGS REMEMBERED, INC. *v.* PETRARCACERTIORARI TO THE UNITED STATES COURT OF APPEALS FOR
THE SIXTH CIRCUIT

No. 94-1530. Argued October 2, 1995—Decided December 5, 1995

Respondent commenced this action in Ohio state court to collect rent allegedly owed by Child World, Inc., under two commercial leases and to enforce Cole National Corporation's guarantee of Child World's performance under the leases. After Child World filed a Chapter 11 bankruptcy petition, Cole's successor in interest, petitioner here, removed the action to federal court under the bankruptcy removal statute, 28 U. S. C. § 1452(a), and the general federal removal statute, § 1441(a). The Bankruptcy Court held that the removal was timely and proper, and that it had jurisdiction. The District Court reversed and, in effect, remanded the case to state court, holding that the removal was untimely under §§ 1441(a) and 1452(a) and that the Bankruptcy Court lacked jurisdiction. The Sixth Circuit dismissed petitioner's appeal for lack of jurisdiction, holding that §§ 1447(d) and 1452(b) barred appellate review of the District Court's remand order.

Held: If an order remands a removed bankruptcy case to state court because of a timely raised defect in removal procedure or lack of subject-matter jurisdiction, a court of appeals lacks jurisdiction to review the order under § 1447(d). That section, a provision of the general removal statute, bars appellate review of any "order remanding a case to the State court from which it was removed." Under *Thermtron Products, Inc. v. Hermansdorfer*, 423 U. S. 336, 345-346, § 1447(d) must be read *in pari materia* with § 1447(c), so that only remands based on the grounds recognized by § 1447(c), *i. e.*, a timely raised defect in removal procedure or lack of subject-matter jurisdiction, are immune from review under § 1447(d). Section 1447(d) bars review here, since the District Court's order remanded the case to "the State court from which it was removed," and untimely removal is precisely the type of removal defect contemplated by § 1447(c). The same conclusion pertains regardless of whether the case was removed under § 1441(a) or § 1452(a). Section 1447(d) applies "not only to remand[s] . . . under [the general removal statute], but to orders of remand made in cases removed under *any other statutes.*" *United States v. Rice*, 327 U. S. 742, 752 (emphasis added). Moreover, there is no indication that Congress intended § 1452 to be the exclusive provision governing removals and remands in bankruptcy or to exclude bankruptcy cases from § 1447(d)'s coverage. Al-